

23SMCV04699 23SMCV04699

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This is a motion to tax costs. The court notes that some aspects of the motion are so trivial the court wonders why the issue is even raised, such as the request for certain filing fees or service of process. The court has looked at those items, and they are legitimate. The motion is DENIED in those respects.

There are two other areas, though, and they are more significant. One is the request for expert fees. The fees requested are \$7030.90. Initially, it appeared that this was to be based on a 998 offer, but plaintiff is not so claiming. Rather, plaintiff claims that expert fees are recoverable under the Song-Beverly Act as a matter of course irrespective of whether a 998 offer was rejected by the defense. The court tends to agree that under the Act, expert fees are recoverable under *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, whether or not there is a 998. The problem that the court has is that plaintiff retained two different experts to do an examination of the vehicle. The second expert's examination was not done on notice and was long before the scheduled trial. In scope, it appears to be the same as the initial inspection. Plaintiff's explanation is that the expert's inspection was needed because the lease was almost up and plaintiff was going to have to surrender the vehicle. The point of the examination was to document the vehicle's condition at the time it was surrendered. The fear was that once the vehicle was in defendant's possession, it might be changed in some way and evidence would be lost. The court's concern is that there was no effort made to coordinate. There was no mutual exchange of experts at the time or offer to do so. There was no suggestion that the original inspection, done early in the case, could not have been sufficient. There is just no showing that the second inspection was either reasonable or necessary, and the court is inclined to

GRANT the motion as to the second expert but DENY as to the first.

The next aspect is mediation. Defendant contends that the service fee for the mediator is not recoverable as of right.

Plaintiff says that it is reasonable and mediations are favored. In reply, defendant suggests that this was a two case mediation, but plaintiff is seeking the full recovery in both cases—in essence a double recovery. The court will inquire, but that is plainly improper if true. At a minimum, the court would GRANT the motion in the amount of \$520, which is half the mediation cost. The court notes, though, that if this is true, the issue almost certainly could have been avoided with a phone call.

Finally, there is an “appearance” fee for counsel to make a special appearance at a CMC. That is not a cost, so the motion is GRANTED as to that \$190. (That said, it might be recoverable as a fee.)

Accordingly, the motion is GRANTED IN PART AND DENIED IN PART.

The court notes that this issue ought to have been resolved by discussion, not motion.